

14. 9:00 AM CASE NUMBER: MSC21-02445

CASE NAME: NIST VS FARRELL

*HEARING ON MOTION IN RE: STRIKE PORTIONS OF SHANNA FARRELL'S CROSS-COMPLAINT

FILED BY: NIST, WILLIAM G

TENTATIVE RULING:

Before the Court is Cross-Defendant William G. Nist and Mari K. Nist (collectively, "Cross-Defendants")'s motion to strike portions of the Cross-Complaint filed by Cross-Complainant Shanna M. Farrell ("Cross-Complainant"). Cross-Defendant seeks to strike the first, second, third, fourth, fifth, eighth, ninth, eleventh, twelfth, fourteenth, and fifteenth causes of action from the Cross-Complaint.

For the following reasons, the motion is **denied** for failure to comply with California Rule of Court, Rule 3.1322(a).

Analysis

CCP § 436 provides:

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.)

As a threshold issue, the Motion fails to comply with California Rule of Court 3.1322(a) ("A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion to strike an entire paragraph, cause of action, count, or defense.").

Cross-Defendant's notice states that each challenged cause of action "contains irrelevant, false, or improper matter due to conclusory legal language and false posits of fact." However, the notice of motion does not quote in full the portions sought to be stricken as required by CRC Rule 3.1322(a).

Accordingly, the motion is **denied**.

15. 9:00 AM CASE NUMBER: N25-0942

CASE NAME: AMANA ENTERPRISE, LLC VS. ELLIE ROUHANI

*HEARING ON MOTION IN RE: AWARD OF ATTORNEY'S FEES AND COSTS

FILED BY: KATOUZI, ROOZBEH

TENTATIVE RULING:

Summary

Defendant Ellie Rouhani, Roozbeh Katouzi, and Super Tehran Market, LLC ("Defendants") Motion for Award of Attorney's Fees and Costs against Plaintiff Amana Enterprise, LLC ("Plaintiff") is **granted** as set forth herein.

Background

On October 24, 2025, Defendants filed a Motion for Award of Attorney's fees & costs to recover \$21,175 in fees and \$1,600 in costs for defending against an unlawful detainer lawsuit commenced on May 12, 2025 by Plaintiff. Defendants were prevailing parties in a successful demurrer to the complaint. In a contested hearing, the Court sustained Defendants' Demurrer without Leave to Amend on October 8, 2025 on the grounds that notice was legal defective.

Now, Defendants request attorney's fees and costs as prevailing party pursuant to California Code of Civil Procedure sections 1032(a)(4) and 1033.5(a)(10), and California Civil Code section 1717(a), on the grounds that Defendants are the "prevailing party" pursuant to the contractual attorney's fees provision in the Commercial Lease Agreement between Plaintiff and Defendant, and are entitled to an order for attorney fees in a reasonable amount as an item of recoverable costs of suit, in addition to other allowable costs of suit. Defendant's Motion is supported by Notice, Memorandum of Points and Authorities, Declaration of Counsel Sherri S. Shafizadeh. The proof of service form evidences service on Plaintiff's counsel by mail and electronic service on October 24, 2025. Plaintiff did not file a timely opposition with the Court.

Analyses

1. Defendants are Prevailing Parties

California Civil Code § 1717(a) authorizes a "prevailing party" to recover an award of reasonable attorney's fees in "any action on a contract" where the contract specifically provides for recovery of attorney's fees. (Cal. Civ. Code § 1717.) California Code of Civil Procedure § 1032(a)(4) defines a "Prevailing party" as "the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant."

If any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034." (Cal. Code Civ. Proc. § 1032(a)(4)).

Further, Section 1032(b) states that "a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Cal. Code Civ. Proc. § 1032(b).) California Code of Civil Procedure section 1033.5(a)(10) defines "costs" as attorney's fees when authorized by contract or statute. (Cal. Code Civ. Proc. § 1033.5(a)(10).) Applied here, the Court finds that the Defendants are prevailing party in this unsuccessful unlawful detainer action.

2. Non Opposition by Plaintiff

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." Nine court days before the hearing is January 29, 2026. No timely opposition was filed by Plaintiff.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253,

257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that Plaintiff’s failure to timely oppose this motion is deemed to be its consent to the granting of this motion for attorney’s fees and costs.

3. Defendant’s Fees and Costs are Reasonable

In reviewing the costs and fees incurred, the Court considered the *Lodestar* factors, the experience of counsel, the amount of time incurred in defending against this case, and in prosecuting the demurrer. In doing so, the Court finds that Counsel Shafizadeh’s hourly rate of \$500.00 per hour, given her experience of nearly 30 years, and the amount of time spent on behalf of her clients in defending against this unlawful detainer action, are appropriate. Accordingly, the Court finds that amount of fees requested, \$21,175, are reasonable. The costs in the amount of \$1,600 as set forth in the Memorandum of Costs are reasonable.

Ruling

Defendant Ellie Rouhani, Roozbeh Katouzi, and Super Tehran Market, LLC (“Defendants”) Motion for Award of Attorney’s Fees and Costs against Plaintiff Amana Enterprise, LLC (“Plaintiff”) is **granted**. Plaintiff Amana Enterprises LLC shall pay attorney’s fees in the amount of \$21,175 and costs in the amount of \$1,600 no later than thirty (30) days from the date of this hearing. The Court will execute the proposed form of order lodged by Defendants on October 24, 2025.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C25-00779
CASE NAME: PAWAN GARG VS. BMW OF NORTH AMERICA, LLC, A DELAWARE LIMITED LIABILITY COMPANY

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S DEPOSITION AND REQUEST FOR MONETARY SANCTIONS**

FILED BY: BMW OF NORTH AMERICA, LLC, A DELAWARE LIMITED LIABILITY COMPANY

TENTATIVE RULING:

Summary

Defendant BMW of North America, LLC (“Defendant” or “BMW”) filed a Motion to Compel Plaintiff Pawan Garg’s (“Plaintiff”) Deposition and for Sanctions in the amount of \$2,280 is **granted**.